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|          |               | <p>counsel does not cure the defect in the written discovery responses. The Code requires Respondent to swear under oath that she will produce <u>all</u> documents responsive to the requests.</p> <p>Based on the foregoing, the motion to compel further responses to Request Nos. 41 and 41 is <b>GRANTED</b>.</p> <p>Respondent <b>shall</b> serve further responses under oath and without objection, within 10 days of notice of this ruling, extended for method of service.</p> <p>Pursuant to Code of Civil Procedure section 2031.310(h) the court imposes reasonable sanctions of <b>\$3,120.00</b> jointly and severally against Respondent and her counsel of record, Jeany Duff, payable to Hamilton &amp; Associates, APC within 30 days of notice of this ruling, extended for method of service, or any later date as agreed upon by the parties in writing.</p> <p>Petitioner is ordered to file and serve notice of ruling.</p> <p style="text-align: center;">[Motion Type]</p>             |
| 01447409 | Poska - Trust | <p style="text-align: center;"><b>TENTATIVE RULING</b></p> <p><b>Case:</b> Poska - Trust 01447409</p> <p><b>Calendar No:</b> 9<br/> <b>Date:</b> 08/19/26</p> <hr/> <p style="text-align: center;"><b><u>MOTION TO QUASH SUBPOENA (ROA 51)</u></b></p> <p>Respondent Kimberly Valentine-Poska filed the instant motion to quash a subpoena issued to Citibank by Petitioners Alexander Poska and Ryan Poska. (ROA 51.)</p> <p>On 11/13/25, Petitioners issued the subject subpoena to Citibank. Petitioners did not serve Respondent with a Notice to Consumer, nor did Petitioners serve Respondent with a copy of the subpoena.</p> <p>On 11/25/25, Respondent received a letter from Citibank's Legal Support Unit advising her of the subpoena. This was the first time Respondent learned of the subpoena.</p> <p>On 11/26/25, Respondent's counsel sent Citibank a letter, raising various objections to the subpoena, including but not limited to, the lack of proper notice and privacy rights. The</p> |

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|  |  | <p>letter also copied Petitioners' counsel and stated that it constituted an effort to meet and confer.</p> <p>On 12/2/25, Citibank informed Respondent's counsel that it would produce the documents on 12/9/25, unless it received a "filed [Motion to Quash] signed from the court" by 12/9/25.</p> <p>On 12/5/25, Respondent filed the instant Motion to Quash.</p> <p>Petitioners' counsel did not respond to the 11/26/25 letter, or otherwise communicate regarding the subpoena, until 6/25/26 - nearly 7 months after the 11/26/25 meet and confer letter and after the instant motion was filed.</p> <p>Ultimately, the parties reached an agreement to narrow and revise the scope of the subpoena. Thus, this motion is going forward only as to the issue of fees.</p> <p>In ruling on a motion to quash, the court "may in its discretion award the amount of reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Code Civ. Proc. § 1987.2(a); see also <i>Vasquez v. California School of Culinary Arts, Inc.</i> (2014) 230 Cal.App.4th 35, 41 and <i>Evilsizor v. Sweeney</i> (2014) 230 Cal.App.4th 1304, 1311.)</p> <p>The court may award attorney's fees even if the subject subpoena is withdrawn after the motion to quash is filed. (<i>Roe v. Halbig</i> (2018) 20 Cal.App.5th 286, 306.)</p> <p>In their Opposition to this motion, Petitioners argue that sanctions should not be awarded because they "promptly investigated" Respondent's 11/26/25 letter and agreed to revise the subpoena after "confirming the accuracy" of the objections. (ROA 88, 6:9-12.) Petitioners further argue that their delay in meeting and conferring "was reasonable given the complexity of tracing after-discovered Trust assets across multiple financial institutions." (Id. at 7:3-4.)</p> <p>The court finds such arguments unpersuasive. Petitioners offer no reason for the seven months of silence between Respondent's 11/26/25 meet and confer letter and Petitioners' 6/25/26 responsive letter. Petitioners should have withdrawn the subpoena immediately upon realizing their failure to give proper notice thereof to Respondent. At the very least, Petitioners could have requested that Citibank withhold production of documents while the parties meet and confer. Moreover, Petitioners' 6/25/26 meet and confer letter states nothing about the process or results of any course of investigation. (ROA 88, Hamilton Decl., Ex. E.) It seems that</p> |
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|          |                 | <p>the entirety of the letter could have been sent the first week of December 2025.</p> <p>Petitioners further argue that no sanctions should be awarded because of the "very abbreviated meet-and-confer period before Respondent's counsel filed the Motion." (Id. at 7:7-8.) The court finds such argument unpersuasive. It was Citibank that imposed the short time limit for Respondent to file the motion to quash, even over Respondent's objection. (Id. at Ex. D.) Moreover, Petitioners do not address their failure to serve Respondent with a Notice to Consumer or with a copy of the subpoena. Had Petitioners given proper notice of the subpoena to Respondent, Respondent would have had sufficient time to meet and confer before filing a motion to quash. Instead, Respondent had to prepare and file a motion to quash in a short period of time during the holiday season.</p> <p>Finally, Petitioners argue that sanctions should not be awarded because they ultimately narrowed the scope of the subpoena in good faith and because the subpoena was not oppressive or unreasonable. The court is not persuaded. While the subpoena itself may not have been oppressive, the lack of notice, as well as the failure to remedy or explain the lack of notice, does indicate bad faith. Moreover, with proper notice, the subpoena could have been narrowed during the meet and confer process without the necessity of filing a motion to quash.</p> <p>On the record presented, there appears to be no substantial justification (i.e., reasonable basis in law or fact) for opposing the instant motion. The court <b>AWARDS</b> Respondent attorney's fees of <b>\$3,060.00</b> pursuant to Code of Civil Procedure section 1987.2, payable by Petitioners to Garrett Charchidi, LLP within 30 days of notice of this ruling, extended for method of service, or by any further date as agreed upon by the parties in writing.</p> <p>By stipulation of the parties, the initial subpoena issued on 11/25/26 is <b>ORDERED</b> quashed, and Petitioners may serve Citibank with the revised subpoena attached as Exhibit "I" to the declaration of Jonathan J. Coleman (ROA 88).</p> |
| 01194033 | Schmidt - Trust | <p style="text-align: center;"><b>TENTATIVE RULING</b></p> <p><b>Case:</b> Schmidt - Trust 01194033</p> <p><b>Calendar No:</b> 6</p> <p style="text-align: right;"><b>Date:</b> 08/19/26</p> <hr/> <p style="text-align: center;"><b>MOTION TO STRIKE OR TAX COSTS (ROA 480)</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |